

Chief Justice's Court

Case :- WRIT - C No. - 52920 of 2016

Petitioner :- Shailendra Pratap Singh

Respondent :- U.P. Power Corporation Ltd. And 2 Others

Counsel for Petitioner :- Abhishek, Umesh Kumar Singh

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Dilip B. Bhosale, Chief Justice

Hon'ble Yashwant Varma, J.

Heard Sri Abhishek, learned counsel for the petitioner and Sri Mahboob Ahmad for the respondents.

The petitioner has approached this Court seeking a direction commanding the second and third respondents to sanction an electricity connection in his favour. It appears that the petitioner is residing in a tenanted accommodation and on account of some dispute with the landlord the electricity connection to the portion of the premises occupied by him has been disconnected. We note that the application for grant of a connection has been made as recently as on 21 October 2016. Learned counsel for the second and third respondents points out that the application for grant of a connection in terms of the provisions of the U.P. Electricity Supply Code, 2005 has to be made upon a prescribed format and is liable to be considered only after completion of formalities specified therein.

Bearing in mind the above submissions, we dispose of the instant writ petition with the following directions:

(A) The petitioner shall within a period of two days from today submit an application in the prescribed form and complete all formalities required to enable the second and third respondents to consider the claim for release of an electricity connection.

(B) If the petitioner completes all the formalities as required

under the provisions of the U.P. Electricity Supply Code, 2005, the second and third respondents shall duly process the application and pass appropriate orders thereon within a period of seven days thereafter.

Order Date :- 7.11.2016

Arun K. Singh

(Dilip B Bhosale, CJ)

(Yashwant Varma, J)